

Mohnish S/O Jay Chauhan vs Mrs. Rajeshwari W/O Mohanish Chauhan @ ... on 26 July, 2018

Author: R. K. Deshpande

Bench: R. K. Deshpande

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
NAGPUR BENCH, NAGPUR
Family Court Appeal No. 48/2017

APPELLANT:-
(Ori. Petitioner)
On R.A.

Mohnish S/o. Jay Chauhan,
aged about 33 years, Occ. Nil,
R/o. C/o. Smt. Vibha Chauhan, C-6,
2nd Floor, Ramrkushna Nagar, Khamla
Road, Nagpur.

VERSUS

RESPONDENTS:-
(Ori. Respondent)
On R.A.

Mrs. Rajeshwari W/o Mohanish Chauhan
@ Ms Rajeshwari Madhavan, aged about
30 years, Occ. Service, R/o. C/o. Shri M.
Satish, B-26, New Samir Apartment Jasal
Park, Bhayandar (East), Mumbai -
401105.

Shri A. K. Choube, Advocate for appellant.
None for respondent.

CORAM: R. K. DESHPANDE AND
ARUN. D. UPADHYE, JJ.

Date of Reserve Judgment: 12.07.2018
Date of pronouncement Judgment: 26.07.2018

JUDGMENT (PER ARUN. D. UPADHYE , J.)

Being aggrieved by the judgment and order dated 11.10.2017 passed by the learned Family Court-2, Nagpur in Petition No. (A)817/2016. The appellant/original petitioner has preferred this appeal.

2. The appellant (hereinafter referred to as 'petitioner') has 2 gfca48.17.odt filed petition under Section 9 of Hindu Marriage Act, 1955 for Restitution of Conjugal Rights. During the pendency of the petition, he amended the petition and claimed for divorce under Section 13(1)((ia) and (ib) of the Hindu Marriage Act, 1955. The petitioner has contended that the respondent is his wife and their

marriage was solemnized on 29.01.2011 as per Hindu rites and customs. According to him, both were working in the same office and having cordial relations prior to marriage. According to him, the respondent is very quarrelsome nature lady and never like to do the household work. After marriage, they resided at Mumbai and during that period, he observed that she is suffering from epilepsy since prior to marriage. The respondent has suppressed the said disease from the petitioner. The petitioner has also given treatment to her but, she was not taking medicine as per prescription given by the Doctor.

3. It is further contended that she never allowed him to change the job as per his choice and created hurdles when he tried to secure another job.

4. It is further contended that the respondent has deserted him and does not want to reside with him. The respondent is residing separately since 30.06.2015 and therefore, the petitioner is entitled for decree for divorce on this ground. Lastly, it is prayed for decree for dissolution of marriage dated 29.01.2011 between the petitioner and 3 gfca48.17.odt the respondent as per provision of under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955. Hence, this petition.

5. The respondent was served with summons as well as by email, but she did not appear in the proceedings before the learned Family Court even after amendment of the petition.

6. After recording of the evidence in the matter and hearing the learned counsel for the petitioner, the learned Judge of the Family Court has dismissed the petition by impugned judgment and decree dated 11.10.2017. The said decree passed by the Family Court is assailed by the original petitioner by way of appeal amongst other grounds mentioned in the appeal memo.

7. From the aforesaid facts and circumstances of the case, the following points are arise for our reconsideration and we record the findings thereon with reasons as under:-

Points						Findings
(I)	Whether	the	petitioner	proves	that the	No
	respondent has			treated him with cruelty?		
(II)	Whether	the	petitioner	proves	that the	Yes
	respondent deserted			him for a continuous period of		

not less than two year preceding the presentation of the petition?

(III) Whether the impugned judgment and decree Yes requires for interference?

(IV) What order?

As per f
order.

R E A S O N S

8. As to point No.1:- We have heard Shri A. K. Choube, the learned counsel appearing for the petitioner. None for the respondent. Shri Choube, the learned counsel for the petitioner has submitted that the evidence of the petitioner was unchallenged. The petitioner has proved the cruelty at the hands of the respondent. The learned Family Court however, not considered his evidence and wrongly given finding that the petitioner has failed to prove the cruelty as alleged. After perusal of the pleadings and evidence on record, we are of the considered view that the Family Court was right in answering the point No. 1 in the negative. It is to be noted that after amendment in the petition, there was no substantive amendment made by the petitioner about cruelty. The petition was initially filed for restitution of conjugal rights and therefore, on the same pleadings, he could not succeed to prove the cruelty. The evidence adduced by him by way of affidavit without pleadings therefore, cannot be considered. The submission that there was already pleadings in the petition also cannot be accepted. Hence, we answered to point No. 1 in the negative.

9. As to point No.2:- The learned counsel for the petitioner has submitted that the petition was substantially amended and ground 5 gfca48.17.odt of desertion was taken. The petitioner has also adduced evidence to that effect. He submitted that the petitioner is residing separately since 30.06.2015 and amendment in petition is carried out on 17.07.2017 and therefore, the respondent deserted the petitioner preceding two years of filing of the petition. Considering the submission of the learned counsel for the petitioner and after perusal of the pleadings and evidence on record, we are of the considered view that so far as desertion is concerned, the petitioner has proved the same by adducing the evidence on record. It is to be noted that in spite of service of summons as well as email in the petition, she did not turn up and also not shown willingness to reside with the petitioner. There is no reason to disbelieve the version of the petitioner, that the respondent has deserted him for more than two years. The learned Family Court has held that the petitioner has failed to establish that the respondent has deserted him with an intention to bring cohabitation to end permanently and therefore, refused to grant decree for divorce on this ground also. The findings recorded by the learned Family Court is not based upon the evidence adduced by the respondent. The said findings there will have to be set aside.

10. The petitioner has established the fact that she is not residing with him more than two years without any valid ground and therefore the petitioner has succeeded to prove the fact that the 6 gfca48.17.odt respondent has deserted him. The case of the petitioner is covered under Section 13(1)(ib) and therefore, he is entitled for divorce on this ground. Hence, we answered point No. 2 in the affirmative.

11. In view of the affirmative finding of point No. 2, the appeal filed by the appellant will have to be allowed by setting aside the impugned judgment and decree. The petition filed by the petitioner for divorce under Section 13(1)(ib) of the Hindu Marriage Act, 1955 deserves to be allowed. Hence, we

pass the following order:-

O R D E R (I) The appeal is allowed. (II) The impugned judgment and decree dated 11.10.2017 passed by the Family Court No. 2, Nagpur in Petition No. A-817/2016 is hereby quashed and set aside.

(III) Consequently, the petition No. A-817/2016 filed by the petitioner is allowed.

(IV) The marriage between the petitioner and respondent solemnized on 29.01.2011 is hereby dissolved by granting decree for divorce under Section 13(1)(ib) of Hindu Marriage Act, 1955.

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(V) No order as to costs.

JUDGE

JUDGE

Gohane